

Disposition

The court grants this Motion under 473(d) of the CCP.

Plaintiff to file Order, and to serve notice of Order on Defendant.

Defendant to file Answer within 30 days of receipt of written notice of this Order.

6. 9:00 AM CASE NUMBER: L25-01000

CASE NAME: CAPITAL ONE N.A. VS. AURORA DIAZ

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,710.94, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$4,562.94.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,731.61.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-02967

CASE NAME: CAPITAL ONE N.A. VS. LAURA ZEIDAN

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a Motion, on 5/12/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the counsel of Defendant on 5/12/26.

Though counsel filed a notice of substitution of attorney on 5/22/26, there was ample time for counsel to receive notice of the Motion while counsel was still representing the Defendant. Thus, this court finds that Defendant received notice.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,227.22, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$523.61.